

Tentative Rulings for September 18, 2026 Department 10

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 10 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 888 5460**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2304019	LODES VS COUNTY OF RIVERSIDE	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

The Court GRANTS the motion under Government Code section 12965, subdivision (c)(6) for an award of fees reasonably incurred by Plaintiff, the prevailing party in this case. Fees are awarded in the reduced amount of \$625,660. The Court GRANTS Plaintiff's request for daily transcripts costs (\$4,424.55). The Court DENIES Plaintiff's request for recovery expert fees (\$8,4272.88).

Plaintiff moves for attorney's fees and costs after the entry of judgment following a jury verdict in his favor. Plaintiff, a former sergeant for the Riverside County Sheriff's Office filed an action against his former employer, the County of Riverside, alleging violations of the FEHA (Gov. Code, §12940(a)) for harassment, disability, retaliation, and failure to prevent harassment and retaliation. The Complaint in this case was filed on August 03, 2023, and the First Amended Complaint was filed on September 28, 2023. After more than two years of litigation, the case proceeded to a jury trial on March 16, 2026. On April 21, 2026, the jury rendered a verdict, and on May 16, 2026, this Court entered judgment on the verdict awarding Plaintiff the total noneconomic damages in the amount of \$2,250,000.

Plaintiff now moves for fees and cost in the total amount of \$1,290,030.43, which represents the lodestar figure of \$789,030 with a fee multiplier of 1.7, expert fees of \$8,472.88, and daily transcript costs of \$4,424.55. Plaintiff argues that fees should be calculated based on the prevailing hourly rate of attorneys of comparable skill and experience as Plaintiff's attorney practicing employment law within Orange County, rather than Riverside County. Plaintiff argues that an enhancement of 1.7 multiplier is justified based on the risk involved in the contingent nature of his counsel's representation of recovering nothing while forgoing other employment opportunities and based on the counsel's high level of legal skill in obtaining an excellent result for his client. Plaintiff also argues that his counsel's claimed hourly rate of \$825 is reasonable considering the prevailing rates charged by attorneys in his field in the Orange County area and the rates reflected in the Laffey Matrix. Plaintiff also argues that he is entitled to recover his expert fees and costs for daily trial transcript which were reasonably necessary for conduct of litigation. In support of his motion, Plaintiff submits the declaration of his counsel, Bijan Darvish, detailing his hours expended in this litigation, along with declarations of various plaintiff-side employment attorneys practicing in the Southern California areas attesting to the reasonableness of Mr. Darvish's claimed hourly rate of \$825.

Defendant opposes the motion, contending that the number of hours claimed by Plaintiff is excessive. It argues that the fees should be reduced by striking certain vague, duplicative, excessive, and clerical billing; as well as fees billed for consolidated email time and unperformed future time anticipated by Plaintiff's counsel for preparing

the reply and appearing for hearing; and further argues that travel time should only be compensated at one-half rate. Defendant also argues that the hourly rate claimed by Plaintiff's counsel is unreasonable and should be fixed at \$700 which is the appropriate market rate. Defendant also argues that the Court should deny Plaintiff's request for \$8,472.88 in expert fees which was not reasonably necessary for this litigation because Plaintiff abandoned all economic damages and therefore offered no expert opinion.

Analysis

I. Basis for fees.

A prevailing party in a civil lawsuit is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032(b).) Statutory attorney fees are included as recoverable costs. (Code Civ. Proc., § 1033.5(a)(10)(B).) Under the FEHA's provision governing fees, in FEHA cases, a court may award reasonable attorney fees and costs, including expert witness fees, to the prevailing party. (Gov. Code, § 12965(c)(6)¹.) "This statute has been interpreted to mean that in a FEHA action a trial court should award attorney fees to a prevailing plaintiff unless special circumstances would render a fee award unjust." [Citations.] (*Chavez v. City of Los Angeles* (2010) 47 Cal.4th 970, 976.)

Here, it is undisputed Plaintiff is the prevailing party to whom a favorable judgment was entered. Therefore, this Court may, in its discretion, award reasonable and necessary fees incurred by Plaintiff in this action. Defendant County neither disputes Plaintiff's status as the prevailing party nor contends Plaintiff is not entitled to recover any fees. Rather, Defendant argues that the requested number of hours and hourly rates used in Plaintiff's fee calculation should be curtailed as excessive.

II. Fees are to be calculated through use of the Lodestar method.

"In determining a reasonable attorney fee award under fee-shifting statutes such as FEHA, a court begins by deciding 'the reasonable hours spent' on the case and multiplying that number by 'the hourly prevailing rate for private attorney in the community conducting noncontingent litigation of the same type.'" (*Nicols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1240, citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133.) "The result is called the 'lodestar' figure." (*Ibid.*) "The court may then adjust the lodestar figure in light of a number of relevant factors that weigh in favor of augmentation or diminution." [Citations.] (*Ibid.*)

a. The reasonable hours spent.

In sum, the Court eliminates a total of 62.6 hours from the lodestar calculation as set forth below.

¹ FEHA provides: "In civil action brought under this section, the court, in its discretion, may award to the prevailing party, including the department, reasonable attorney's fees and costs, including expert witness fees...." (Gov. Code, § 12965(c)(6) .)

“[T]he lodestar method vests the trial court with the discretion to decide which of the hours expended by the attorneys were ‘reasonably spent’ on the litigation.” (*Meister v. Regents of University of California* (1998) 67 Cal.App.4th 437, 449, *citing Serrano v. Unruh* (1982) 32 Cal.3d 621, 633, 635, 639.) The starting point for this determination is the attorney’s time records. (*Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal.App.4th 359, 395-397.) “Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records.” (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) “In challenging attorneys fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550 564.) “General arguments that fees are excessive, duplicative, or unrelated do not suffice.” (*Ibid.*) A challenge to reasonableness of fees must be supported by evidence by citation to record and explanation of which fees are challenged. (*Id.* at 562.)

Defendant first argues that the number of hours spent by Plaintiff’s counsel in litigating this case should exclude the consolidated time entries for emails entered for July 14, 2026. Defendant’s challenge fails. Here, Plaintiff’s counsel billed for two consolidated sets of emails: Emails exchanged between Plaintiff’s counsel and defense counsel and emails exchanged between Plaintiff’s counsel and Plaintiff. Plaintiff’s counsel billed a combined total of 84.4 hours by billing .1 hour for each of the 475 emails between him and defense counsel and for each of the 369 emails between him and Plaintiff. The descriptions for each of these emails are included in Exhibit 3 of the declaration of Plaintiff’s counsel (“Darvish Decl.”) submitted in support of the fee request. Defendant argues, without evidence, that the entries for these emails were not contemporaneously prepared demonstrating how long the work performed on the emails at issue took. However, Plaintiff’s counsel explains in his declaration that he tracked each email by storing them in his case management software and that the list of the emails described in Exhibit 3 were directly pulled from his email server. (Darvish Decl., ¶ 37.)

Defendant next argues that Plaintiff should not recover for 10 hours of unperformed future work anticipated in preparing the reply and appearing at the hearing on this matter, which are not actually reasonably incurred fees. Defendant’s challenge fails. Although Plaintiff’s counsel had not yet billed for these hours, Plaintiff counsel can properly attest to the estimated time it would take to complete the tasks. 10 hours for preparing a reply and appearing at the hearing is not unreasonable.

Defendant next argues that the Court should exclude 31.9 hours total for separate mock-jury/focus-group exercises and preparing follow-up memoranda. According to Defendant, Plaintiff’s counsel has not established that the time spent on these matters were reasonably necessary in preparing for trial in an action consisting of a single cause of action. Defendant’s reasoning is persuasive in that Plaintiff should not be compensated for every strategic technique Plaintiff’s counsel elected to employ,

including the use of an optional litigation tool. The predicate of any attorney fee award is the necessity and usefulness of the conduct for which compensation is sought (*Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819, 846.) The amount of fees the motion seeks is chiefly based on the extraordinary level of skills and expertise held by Plaintiff's attorney in obtaining an excellent outcome for Plaintiff. It is unclear why an experienced trial counsel could not engage in ordinary trial preparation through preparing witnesses, drafting examinations, developing voir dire, preparing opening and closing arguments, and organizing exhibits. Therefore, the Court excludes **31.9 hours** from the fee calculation.

Defendant next argues that the lodestar figure should exclude block billing for trial preparation. As Defendant points out, Plaintiff's counsel engaged in several block billing practices to bill for multiple hours for which no details were provided on the work performed. These include the entries for "Cont. preparing for trial" entered on January 30, 2026, February 1, 2026, February 4, 2026, and February 5, 2026, for a **total of 21.8**. "Block billing occurs when 'a block of time [is assigned] to multiple tasks rather than itemizing the time spent on each task.' [Citation.]" (*Mountjoy v. Bank of America, N.A.* (2016) 245 Cal.App.4th 266, 279.) Although not per se prohibited, "[b]lock billing presents a particular problem for a court seeking to allocate between reimbursable and unreimbursable fees, and trial courts are granted discretion 'to penalize [block billing] when the practice prevents them from discerning which tasks are compensable and which are not.' [Citation.]" (*Marriage of Nassimi* (2016) 3 Cal.App.5th 667, 695.)

Defendant next argues that the lodestar figure should be reduced for clerical and travel time as they are considered non-attorney work. Defendant's argument is persuasive that Plaintiff should not recover fees for purely clerical work such as preparing summons, civil cover sheet, certificate of counsel, filing documents, proof of service, and cost bill memorandum. A total of **1.3 hours** were billed for these tasks, which should be excluded from the fee calculation. However, Defendant presents no valid grounds to reduce the rate for 26.8 hours of travel by 50% and fails to offer any explanation as to why travel hours billed by Plaintiff's attorney were not necessary or reasonable in this litigation.

Defendant argues that the lodestar should exclude the time spent on abandoned claims, including his harassment claim and any claim for economic damages. Here, Defendant provides valid grounds for the exclusion of time spent on litigating his harassment claim as Plaintiff ended up litigating a single retaliation claim, which should result in excluding a total of **7.6 hours** for hours billed on December 1, 2025 (.4), December 4, 2025 (.5), December 15, 2025 (1.2), January 16, 2026 (2.5), January 26, 2026 (.8), January 27, 2026 (.9), and February 13, 2026 (1.3). Where a prevailing party succeeds on only some FEHA claims, the party "may recover attorneys' fees for time litigating unsuccessful claims when they are 'closely related to or factually intertwined with' the successful ones.'" (*Vines v. O'Reilly Auto Enterprises, LLC* (2024) 101 Cal.App.5th 693, 702.) Here, the descriptions of work performed on their face demonstrate that these entries are related to matters which were solely devoted to litigating harassment claim and economic damages, which Plaintiff abandoned.

b. *The reasonable hourly rate.*

Plaintiff contends the proper hourly rate to be billed by his counsel is \$825, which represents counsel's reasonable "home market" rate charged by attorneys practicing in the Orange County area. Plaintiff submits his declaration stating that, despite diligent efforts in finding an attorney in the Riverside County area, Plaintiff was not successful. (Declaration of Frank Lodes, ¶¶ 3-5.) Normally, "[t]he reasonable market value of the attorney's services is the measure of a reasonable hourly rate." (*Nemecek & Cole v. Horn* (2012) 208 Cal.App.4th 641, 651.) Attorney's fees under the lodestar method is to be "based on the prevailing hourly rates for comparable legal services in the community." (*Premier Medical, supra*, 163 Cal.App.4th at 558.) However, in unusual circumstances, the trial court is not limited to the use of local hourly rates, such as where the plaintiff submits a declaration showing extensive efforts to find local counsel that were wholly successful. (*Horsford v. Board of Trustees of Calif. State Univ., supra*, 132 Cal.App.4th at 399.) Here, Plaintiff has made a sufficient threshold showing that search for a local counsel was impracticable. Defendant does not contest whether Plaintiff's counsel should bill at his home market rate in Orange County, but it argues that the rate claimed by Plaintiff's counsel is excessive. Here, as Defendant contends, the proper hourly rate to be applied in calculating the lodestar figure is \$700.

Plaintiff submits the declaration of his counsel indicating in detail the extent of his experience and expertise in litigating complex Plaintiff-side employment cases and excellent results he obtained in those cases. Plaintiff also submits the declaration of several attorneys who conduct litigation of the same type opining that the counsel's claimed hourly rate of \$825 is reasonable in light of the skill, experience, and the complexity of the case involved and the excellent outcome achieved in this litigation. However, none of the attorneys who claim to possess expertise regarding the reasonable hourly rates of attorneys litigating employment cases, with the exception of Attorney Christian J. Petronelli, offer any factual basis in support of their opinion that \$825 is the reasonable home market rate for attorneys practicing in Orange County with skill and experience comparable to Plaintiff's counsel. "The foundation required to establish the expert's qualifications is a showing that the expert has the requisite knowledge of, or was familiar with, or was involved in a sufficient number of transactions involving the subject matter of the opinion." [Citation.] (*Howard Entertainment, Inc. v. Kudrow* (2012) 208 Cal.App.4th 1102, 1115.) Mr. Petronelli claims, in December of 2025, he was awarded attorney fees by a court in Orange County at the rate of \$850, and a 1.65 multiplier (Declaration of Christian Petronelli, ¶¶ 5-9); however, he has many more years of experience in litigating employment cases than Plaintiff's counsel and therefore cannot justify why Plaintiff's counsel should charge an hourly rate of \$825. Instead, a solid indicator of reasonable hourly rate which should be charged by Plaintiff's counsel is the hourly rate of \$700 which he was awarded by a court in Orange County in December of 2025. (Darvish Decl., ¶ 17, Ex. 1.)

Plaintiff also argues that his counsel should be able to charge a higher rate of \$825 for the present matter almost one year since the time counsel was awarded fees

at the rate of \$700. This argument is unpersuasive as Plaintiff offers nothing to support a claim that his counsel's hourly rate has since increased by \$125 in the course of less than one year. Furthermore, Plaintiff provides no justification as to why he should recover fees at his counsel's elevated rate for work performed in this litigation prior to the December 2025 fee award. Therefore, **the proper hourly rate is \$700.** "The particular 'method of achieving adequate compensation for out-of-town counsel, when reasonably necessary, rests within the trial court's discretion.' [Citation.]" (*Nicols v. City of Taft*, *supra*, 155 Cal.App.4th at 1243.)

III. Multiplier.

Plaintiff seeks a multiplier of 1.7 to be applied to the lodestar calculation. The Court declines to apply a multiplier.

Plaintiff's claim for multiplier is primarily based on the risk undertaken by his counsel who represented Plaintiff on a contingent basis and the extraordinary skills and expertise required in obtaining the excellent outcome in this case. The lodestar figure may be adjusted by the court based on the following factors: "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) However, as the Supreme Court in *Ketchum v. Moses*, *supra*, 24 Cal.4th 1122 noted, when determining whether the factors for applying a multiplier are present, the trial court should not engage in an "improper double counting," which is the practice of substantial enhancement based on the exceptional quality of representation and the attorney's qualifications, whereas the qualifications were presumably included in the hourly rate used to calculate the lodestar. (*Id.* at 1142.) Here, the quality of representation and Plaintiff's counsel's qualifications have already been factored into the determination of his home market hourly rate. "The purpose of such adjustment is to fix a fee at the fair market value for the particular action." (*Ibid.*) The court must not consider extraordinary skill and the other *Serrano* factors to the extent these are already included within the lodestar. (*See Northwest Energetic Services, LLC v. California Franchise Tax Bd.* (2008) 159 Cal.App.4th 159 Cal.App.4th 841, 879 ["trial court must not intertwine considerations relevant to the determination of the lodestar amount with factors relevant to whether the lodestar should be adjusted upward"].)

Here, Plaintiff claims that a multiplier of 1.7 is reasonable in light of the fact his counsel, by taking on this case on a contingency basis, undertook the risk of recovering nothing in this case while incurring the initial out-of-pocket expense exceeding \$65,000, and represented Plaintiff without compensation for almost three years. However, the case was in litigation for less than three years, which is not enough to justify the application of a multiplier solely on the grounds of the risk that comes with contingent representation. Furthermore, any claim that Plaintiff's counsel was preoccupied during the trial of this case is not sufficient justification to show that counsel was precluded from taking on other work over the course of the entire litigation.

IV. Expert fees and daily transcript costs.

Plaintiff also requests the Court to award expert fees in the amount of \$8,472.88 and daily transcript costs in the amount of \$4,424.55. The Court should deny the request for expert fees but grant the request for recovery of daily transcript costs. An award of reasonable attorney's fees and costs, including expert witness fees, is discretionary under FEHA. (Gov. Code, § 12965(c)(6).)

The expert fees incurred by Plaintiff cannot be deemed reasonable and necessary fees. Plaintiff initially claimed multiple violations of FEHA but ended up litigating a single claim for retaliation while abandoning his claim for harassment and economic damages. "An award may take into account the scale of the plaintiff's success, and it must not encourage 'unnecessary litigation of claims that serve no public purpose either because they have no broad public impact or because they are factually legally weak.' [Citation.]" (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 235.)

Plaintiff should nevertheless recover his cost for daily transcript. Plaintiff explains that this cost of reasonably necessary to keep track of daily trial testimonies, which would have been beneficial for both parties in the event of any post-trial disputes that may arise.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304019	LODES VS COUNTY OF RIVERSIDE	MOTION TO TAX COSTS

Tentative Ruling:

The Court GRANTS IN PART and DENIES IN PART Defendant's Motion to Tax Costs.

The Court DENIES the motion to strike the entire memorandum of costs as prevailing parties are entitled to cost as a matter of right (Code Civ. Proc., § 1032(b).), and Defendant, the moving party, provides no legal authority in support of the position that Plaintiff bears the initial burden to show that the costs were necessary and reasonable for the conduct of litigation.

The Court GRANTS in part and DENIES in part the motion to tax costs. The Court GRANTS the motion to tax \$9,027.71 billed under Item Nos. 4, 8, 15 of the cost memorandum. The Court DENIES the motion as to \$2,000 billed under Item No. 13 of the cost memorandum.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2305571	CAMACHO GODINEZ VS SANDOVAL	MOTION TO BE RELIEVED AS COUNSEL FOR ERNESTO ANTONIO CAMACHO GODINEZ

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2405163	SUNGA VS ANSTAETT	MOTION FOR PREFERENTIAL TRIAL SETTING

Tentative Ruling:

GRANTED.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2406558	HOSSENI VS PHILLIP PFEIFER	DEMURRER

Tentative Ruling:

The Court OVERRULES the special demurrers. The Court SUSTAINS the general demurrer to the 2nd cause of action with 30 days leave to amend. The Court SUSTAINS the general demurrer to the 6th causes of action without leave to amend.

Factual / Procedural Context:

Plaintiffs Seyed Farshid Hosseini and First Quality Builds, LLC allege that Hosseini and his wife moved from Washington to California based on a pre-approval mortgage that was supposed to be in his name; however, the loan ended up being in his company's name, First Quality Builds. He alleges Defendants treated him as the true borrower, including issuing him an IRS Form 1098 mortgage interest statement to him personally. Plaintiff fell into financial hardship in 2023, and applied to the California Mortgage Relief program, yet Defendants continued the foreclosure process resulting in a nonjudicial foreclosure sale on 10/24/24. The Second Amended Complaint asserts causes of action for: (1) wrongful foreclosure; (2) violation of Homeowner Bill of Rights; (3) unfair competition; (4) breach of the covenant of good faith and fair dealing; (5) quiet title; and (6) declaratory relief.

Defendant Pfeifer appears to demur to the SAC on the grounds that it is uncertain, a defect of parties, plaintiffs lack capacity, and failure to state facts sufficient. There is no memorandum of points of authorities, or declaration demonstrating compliance with the meet and confer process.

In opposition, Plaintiffs assert that there is non-compliance of the notice period, as Defendant served the demurrer on 6/30/26 via email; service should have been made by 6/16/26 for email service. Plaintiffs also assert that they did not receive the full motion—only the notice.

In reply, Defendant submits a declaration indicating he served the motion on 6/3/26 via mail, and therefore, the demurrer should be sustained as there is no opposition.

The Court then continued the matter, ordered Defendant to resubmit and refile the demurrer, so that Plaintiffs could file an opposition on the merits.

In its amended demurrer, Defendant demurs to the 1st and 2nd causes of action on the grounds that they fail to state facts sufficient, and to the 3rd-6th causes of action on the grounds that they fail to state sufficient facts and are uncertain. Defendant then argues that there is a misjoinder as Tabatabai and Pan American Mortgage are not named as defendants. It argues that Plaintiff lacks legal capacity as it is not a borrower; only a natural person may be a borrower under Civil Code section 2920.5(c). It contends that the request for judicial notice demonstrates compliance with the statutory notices. It argues that the SAC is fatally uncertain because dual tracking is not explained.

In opposition, Plaintiffs contend the recorded documents do not establish the truth of the factual assertions, and that Civil Code section 2924(c) is a rebuttable presumption, with a conclusive presumption to the bona fide purchaser. They argue that there is no notice to support a wrongful foreclosure claim and that tender is not required because it is a void transaction. They argue capacity misstates the law. They argue the HBOR pleads facts placing Plaintiff within the statute as he was treated as the borrower. They assert the mortgage broker is not a necessary party as complete relief can be achieved without the broker. They contend that the SAC is not uncertain. They argue that the remaining causes of action are sufficient. Alternatively, they request leave to amend.

In reply, Defendant repeats that only a borrower has standing to assert HBOR. He repeats that the pleading is uncertain.

Analysis

A. Meet & Confer

Code of Civil Procedure sections 430.41 and 435.5 requires a meet and confer process via **phone, videoconferencing, or in person** before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (*Id.* at §§ 430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at §§ 430.41(a)(3), 435.5(a)(3).) Defendant complied. (Weeks Decl. ¶12.)

B. Request for Judicial Notice

Defendant requests judicial notice of the notice of default, notice of trustee's sale, and trustee's deed upon sale. In *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265 (overturned on other grounds in *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 939 n. 13), the court could "take judicial notice of the of the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity." Here, Plaintiffs failed to plead facts or provide evidence contradicting these documents. The Court GRANTS the request for judicial notice.

C. Misjoinder

Under Code of Civil Procedure section 430.10(d), demurrers are appropriate where it appears that (1) there is a nonjoinder of a party, i.e. a necessary third party is not joined, or (2) there is a misjoinder of parties. A plaintiff must join as parties to the action any person whose interest is such that: (1) in that party's absences, complete relief cannot be accorded among those already parties to the action; or (2) any judgment rendered in that party's absence might either (a) prejudice his or her ability to protect his or her interest in later litigation; or (b) leave any of the parties before the court exposed to a risk of additional liability or inconsistent obligations. (*Id.* at §389(a).) Here, Plaintiffs have no causes of action that challenge the underlying transaction, i.e. the mortgage broker process. While they plead that they received the wrong mortgage, they plead no causes of action to reform the deed of trust or seek damages related to the wrong mortgage. As such, there is no misjoinder based on these facts. The Court OVERRULES the special demurrer.

D. Capacity

Code of Civil Procedure section 430.10(b) states: "The person who filed the pleading does not have the legal capacity to sue." Legal capacity refers to a party being a minor, deceased or lacking decision making capacity. (2B Weil & Brown (The Rutter

Group 2026) *California Practice Guide: Civil Procedure Before Trial* § 7:70.) “[T]he lack of capacity to sue is simply a legal disability that ‘ “ ‘deprives a party of the right to come into court.’ ” ’ ” (*Rubinstein v. Fakheri* (2020) 49 Cal.App.5th 797, 806.) Here, there are no facts establishing that Plaintiffs lack legal capacity. The Court **OVERRULES** the special demurrer.

E. Uncertainty

Demurrers for uncertainty will only be sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty are to be overruled when addressed to inconsequential matters, the facts are within the knowledge of the defendant or ascertainable in discovery, or not dispositive of one or more causes of action. (*Id.*) Here, the complaint is not so uncertain such that Defendant does not understand the claims. The Court **OVERRULES** the special demurrer.

F. Failure to State Facts Sufficient

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10(e).) A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

1. Wrongful Foreclosure

“Civil Code sections 2924 through 2924k4 ‘provide a comprehensive framework for the regulation of a nonjudicial foreclosure sale pursuant to a power of sale contained in a deed of trust.’” (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 101.) “The statutory scheme has three purposes: ‘ “(1) to provide the creditor/beneficiary with a quick, inexpensive and efficient remedy against a defaulting debtor/trustor; (2) to protect the debtor/trustor from wrongful loss of the property; and (3) to ensure that a properly conducted sale is final between the parties and conclusive as to a bona fide purchaser.” ’ ” (*Id.* at 102.)

The elements for wrongful foreclosure are: (1) trustee caused an illegal, fraudulent or willfully oppressive sale of real property pursuant to a power of sale in a deed of trust; (2) the party attacking the sale was prejudiced or harmed; and (3) the trustor tendered the amount of the indebtedness or was excused from tendering. (*Miles v. Deutsche Bank National Trust Company* (2015) 236 Cal.App.4th 394, 408.) Technical violations are insufficient as “the foreclosure must have been entirely unauthorized on the facts of the case.” (*Id.* at 409.)

The complaint is based on the failure to provide notices. (SAC ¶27.) Defendant does not attack these allegations but contends that the judicial notice shows compliance—they only show recording of the documents—not that they were mailed. As such, Defendant fails to demonstrate a defect in the pleading. The Court OVERRULES the demurrer.

2. Violation of HBOR

Civil Code section 2920.5(c)(1) defines a borrower as “any natural person who is a mortgagor or trustor.” Plaintiffs admit that the loan was recorded in the name of his company, First Quality Builds, LLC. (SAC ¶11.) While Plaintiffs allege that Hossemi was treated as the borrower, the fact remains that the loan documents were in his company’s name. (SAC ¶13-14.) That is not sufficient to demonstrate that he is personally a borrower under the HBOR. The Court SUSTAINS the demurrer with leave to amend.

3. Unfair Competition

Business & Professions Code section 17200 prohibits any business act or practice that is unlawful, unfair, or fraudulent. A cause of action for violating this statute “borrows” actionable conduct and makes it independently actionable under the unfair competition law. (*Smith v. State Farm* (2001) 93 Cal.App.4th 700, 718.) To the extent that the claim is based on dual tracking or the original note structure, they are not based on the underlying claims. However, demurrers do not lie as to only parts of causes of action. (*Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119 (“A demurrer must dispose of an entire cause of action to be sustained.”)) Plaintiffs have also based this on the wrongful foreclosure claim. (SAC ¶36.) The Court OVERRULES the demurrer.

Breach of the Covenant of Good Faith & Fair Dealing

“The covenant of good faith and fair dealing, implied by law in every contract, exists merely to prevent one contracting party from unfairly frustrating the other party’s right to receive the benefits of the agreement actually made.” (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 349.) “It cannot impose substantive duties or limits on the contracting parties beyond those incorporated in the specific terms of their agreement.” (*Id.* at 349-350.) As explained by one court:

The implied covenant of good faith and fair dealing rests upon the existence of some specific contractual obligation. [Citation.] “The covenant of good faith is read into contracts in order to protect the express covenants or promises of the contract, not to protect some general public policy interest not directly tied to the contract’s purpose.” [Citations.] As we stated in *Love v. Fire Ins. Exchange* (1990) 221 Cal.App.3d 1136 at page 1153: “In essence, the covenant is implied as a *supplement* to the express contractual covenants, to prevent a contracting party from engaging in

conduct which (while not technically transgressing the express covenants) frustrates the other party's rights to the benefits of the contract.”

(*Racine & Laramie, Ltd. v. Department of Parks & Recreation* (1992) 11 Cal.App.4th 1026, 1031–1032.) “If there exists a contractual relationship between the parties, as was the case here, the implied covenant is limited to assuring compliance with the express terms of the contract, and cannot be extended to create obligations not contemplated in the contract.” (*Id.* at 1032.) It involves something beyond a breach of a contractual obligation. (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.2d 1371, 1394.) But a breach of a specific provision of the contract is not necessary to the claim. (*Thrifty Payless, Inc. v. The Americana at Brand, LLC* (2013) 218 Cal.App.4th 1230, 1244.)

Here, Plaintiffs allege that Defendants refused reinstatement of the loan. (SAC ¶40.) That is sufficient for pleading purposes. The Court OVERRULES the demurrer.

4. Quiet Title

The elements of a quiet title action are (1) legal description and street address of the property; (2) plaintiff's title or interest and the basis; (3) defendant's asserting adverse claim or antagonistic property interest; (4) date as of which the determination is sought; and (5) prayer for determination of title. (Code Civ. Proc. § 761.020.) Quiet title is the process of determining any adverse claim asserted by a defendant regarding real property. (*Id.*; *Lechuza Villas West v. California Coastal Commission* (1997) 60 Cal.App.4th 218, 242.) The court is to determine, between the parties, all conflicting interest in the property and decree the interest. (*Lechuza*, supra, 60 Cal.App.4th at 242.)

Here, Plaintiffs allege the foreclosure was void. (SAC ¶44.) The Court OVERRULES the demurrer.

5. Declaratory Relief

In cases of actual controversy relating to the legal rights and duties of the respective parties in relation to a contract or property, a person may bring an action for declaration of his or her rights and duties. (Code Civ. Proc., §1060.) “A complaint for declaratory relief is legally sufficient if it sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the parties under a written instrument or with respect to property and requests that the rights and duties of the parties be adjudged by the court.” (*Wellenkamp v. Bank of America* (1978) 21 Cal.3d 943, 947.) “[D]eclaratory relief operates prospectively and there is no basis for declaratory relief where only past wrongs are involved.” (*Moore v. Wells Fargo Bank, N.A.* (2019) 39 Cal.App.5th 280, 295.) Accordingly, as this involves a past wrong there is no basis for declaratory relief. The Court SUSTAINS the demurrer without leave to amend.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2601463	SHAER VS SHAER	DEMURRER

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.